

State of Minnesota

District Court

County of: _____

Court File Number: _____

Judicial District: _____

Case Type: Criminal

State of Minnesota

Plaintiff

VS

Defendant

Date of Birth: _____

Order Concerning Sealing/Expunging of Records (EXP106)

Minn. Stat. § 609A.02, subd. 1 or 2

On _____ (date), the Court considered the *Petition for Expungement* in the above matter.

Appearances were:

☐ Petitioner (Petitioner is the same person as the Defendant in the underlying criminal matter)

☐ Prosecuting Authority: _____

☐ Other: _____

☐ Waived

The Court finds:

1. On _____ (date) in the District Court of _____ County, the Petitioner:

☐ Entered a plea or was found guilty of the crime of _____ and was sentenced pursuant to Minn. § 152.18.

OR

☐ Entered a plea or was found guilty of _____ following certification or reference to district court for prosecution pursuant to Minn. Stat. § 260B.125.

2. Petitioner was not convicted of an offense that requires registration under Minn. Stat. § 243.166.

3. The Petitioner was discharged by the commissioner of corrections, or was placed on probation and an order discharging the Petitioner from probation has been filed and/or the proceedings dismissed.

participant/case info review zone

4. Proper service ☐ has / ☐ has not been given including notice to any victim if required.

5. There ☐ is / ☐ is not clear and convincing evidence that sealing the record would yield a benefit to Petitioner commensurate with the disadvantages to the public and public safety of: (1) sealing the record; and (2) burdening the court and public authorities to issue, enforce, and monitor an expungement order. {Minn. Stat. § 609A.03, subd. 5(a)}: _____
- _____
- _____
- _____

6. There ☐ is / ☐ is not a nexus between the criminal record to be expunged and the Petitioner's status as a crime victim.

IT IS ORDERED:

- ☐ 1. Petitioner's request for sealing/expunging of records is denied.
- ☐ 2. Petitioner's request for sealing/expunging of records is granted. All official records, including all records relating to the arrest, indictment or complaint, trial and dismissal, shall be sealed by the agencies indicated in paragraph 4 below and the existence not disclosed without court order, except as authorized by law.
- ☐ 3. That for this offense only, all fingerprints and thumbprints, photographs and other identification data except for DNA samples, and all copies of duplicates thereof, shall be sealed by the agencies indicated in paragraph 4 below.
- ☐ 4. This order applies to the following agencies:
- | | |
|--|---|
| ☐ District Court | ☐ MN Attorney General |
| ☐ _____ County Sheriff | ☐ _____ County Attorney |
| ☐ _____ Police Dept. | ☐ _____ City Attorney |
| ☐ MN State Patrol | ☐ Probation/Court Services Dept: _____ |
| ☐ Bureau of Criminal Apprehension | ☐ MN Department of Human Services |
| ☐ Department of Corrections | ☐ MN Department of Natural Resources |
| ☐ Department of Public Safety, Driver and Vehicle Services Division | ☐ MN Department of Health |
| | ☐ _____ |

signature/date review zone

- ☐ 5. This order, which ☐ seals the record of proceedings under Minn. Stat. § 152.18 or ☐ finds a nexus between the criminal record and the Petitioner's status as a crime victim, restores the Petitioner to the status occupied before the arrest or charge. The participant/petitioner review zone Petitioner will not be guilty of perjury for failure to acknowledge the arrest or proceeding in response to any inquiry made for any purpose.
- ☐ 6. The court administrator shall send a copy of this expungement order to each agency and jurisdiction whose records are affected, and send a copy of this order to the Petitioner along with notice identifying each agency that was sent a copy of the order.
7. The Petitioner shall continue to be prohibited from shipping, transporting, possessing, or receiving a firearm for the remainder of the Petitioner's lifetime if the conviction was for a crime of violence and an order was not issued under Minn. Stat. § 609.165, subd. 1d.
- ☐ 8. Other: _____

NOTE: This order is stayed for 60 days, during any appeal, and until any remaining restitution or other financial obligation on the case is paid in full. Records will not be sealed until after this time.

Dated: _____

 Judge of District Court

signature/date review zone